

Asha Ram v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 20 March 2023 · WRIT - C No. 8557 of 2023 · **Disposed;**
fresh theft-assessment order to follow Supply Code

HEADNOTE

Notices dated 31.12.2022 and 8.2.2023, issued in a theft-of-electricity assessment, were withdrawn by the licensee, which issued a fresh notice of hearing and undertook to pass a fresh order. The writ was disposed of with liberty to the electricity department to pass that order only after following the procedure prescribed under the U.P. Electricity Supply Code, 2005. The Court did not decide whether theft was made out or what sum was assessable.

FACTUAL SUMMARY

Asha Ram petitioned the Allahabad High Court against assessment notices dated 31 December 2022 and 8 February 2023 issued by respondent no. 2 in a theft-of-electricity case. The respondents were U.P. Power Corporation Ltd. and two others. On instructions, counsel for the electricity department told the Court that the department had withdrawn those notices, had issued a fresh notice so the petitioner could be heard, and would pass a fresh order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.2

fresh order after withdrawal of a theft-assessment notice

HOLDING

Where the licensee withdraws the impugned theft-assessment notices, issues a fresh notice of hearing, and undertakes to pass a fresh order, the writ is disposed of with liberty to pass that order only after following the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1

FLAG The order does not cite clause 8.2. It refers only to the procedure under the U.P. Electricity Supply Code, 2005, in a stated case of theft of electricity.

PRINCIPLE TAGS

fresh-theft-assessment-order-must-follow-supply-code After the department withdrew the notices dated 31.12.2022 and 8.2.2023 and offered a fresh hearing, the writ was disposed of and the department was left at liberty to pass a fresh order only by following the procedure under the U.P. Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD COMMITTED THEFT OF ELECTRICITY AND WHAT ASSESSMENT, IF ANY, WAS PAYABLE

The impugned notices were withdrawn and a fresh order was left to the department. The Court did not examine the assessment on merits. ¶ 1